

Calendar Lines 7 – 12

Case Name: *Pure Lithium Corporation v. Panasonic Corporation of North America*
Case No.: 26CV487768

Summary of Rulings

No.	Matter	Ruling
1	PCNA's motion to extend time to file motion to seal (7/21/26)	GRANTED
2	Pure Lithium's motion to seal portions of the complaint and Exs. A–B (3/9/26)	GRANTED in part; DENIED as to the agreements
3	Pure Lithium's motion to seal portions of its PI papers (6/26/26)	GRANTED
4	PCNA's motion to seal portions of Pure Lithium's PI papers (7/21/26)	GRANTED in part; DENIED in part; balance DENIED without prejudice
5	PCNA's motion to seal portions of its opposition (7/30/26)	GRANTED in part; DENIED in part; balance DENIED without prejudice
6	Pure Lithium's motion to seal portions of its reply and of PCNA's opposition (8/6/26)	GRANTED
7	PCNA's ex parte application to strike and to file sur-reply (8/10/26)	GRANTED in part: sur-reply and supplemental sur-reply permitted; motion to strike DENIED
8	Pure Lithium's motion for preliminary injunction (6/26/26)	CONTINUED; interim order to be entered

I. Motions to Seal

A. Legal Standard

Court records are presumptively open. (Cal. Rules of Court, rule 2.550(c); *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1208–1210.) Sealing requires express findings of an overriding interest that overcomes the right of access, that the interest supports sealing, a substantial probability of prejudice absent sealing, narrow tailoring, and the absence of

less restrictive means. (Rule 2.550(d).) The order must state the supporting facts and seal only the portions containing the material to be sealed. (Rule 2.550(e)(1).) The showing by the moving party must be particularized; conclusory assertions of confidentiality do not suffice. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 894–898; *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487–488, 496–500 (*Overstock*).) Confidential commercial and technical information may constitute an overriding interest. (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298–300.)

Here, three limits control much of what is disputed. A confidentiality clause or protective-order designation does not in and of itself justify sealing, and records may not be sealed by agreement. (Rule 8.46(d)(1); *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 600–601; *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283–1284 (*Universal City Studios*).) Embarrassment and the wish to avoid scrutiny of alleged misconduct are not overriding interests. (*McNair v. National Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 36 (*McNair*).) Wholesale sealing of a substantive record is not narrowly tailored as the law requires. (*Overstock, supra*, at pp. 496–500.)

The parties have briefed these motions almost entirely on unpublished federal district court orders applying the federal standard. Those decisions are at most persuasive and the federal test is not fully congruent with rule 2.550(d). The Court applies California authority and directs the parties to do so in any further or renewed submissions.

B. Extension of Time (Motion 1)

Pure Lithium lodged its papers June 26, 2026, making PCNA’s deadline July 6. (Rule 2.551(b)(3)(A).) Counsel calendared under Code of Civil Procedure section 1005(b), discovered the error July 16, and filed July 21. Pure Lithium does not oppose. The records have not been transferred to the public file and no prejudice appears.

Accordingly, PCNA’s motion to extend time to file a motion to seal is GRANTED; the July 21 motion is deemed timely.

C. Material the Court Will Seal

As to material disclosing the design, composition, structure, or manufacture of either party's battery technology; specific testing protocols, parameters, and sequences; testing results, images, and underlying data; and internal technical analyses of the foregoing, the Court finds: an overriding interest exists in the confidentiality of the parties' non-public technical and commercial information; that interest supports sealing; a substantial probability of prejudice exists because competitors in the lithium-metal battery field could exploit the information to the disclosing party's detriment; sealing confined to that material is narrowly tailored; and redaction of that material is the least restrictive means available.

On that basis the Court GRANTS: Motion 3 in full; Motion 6 in full; the conceded portions of Motion 4 (Ericson Ex. 1–3, 5–7, 12, 14–17, 20–22, 27–30, 32; Bodoïn Ex. G, I, J, N, O); and the unopposed portions of Motion 5 (Dalal Ex. 2, 7, 8, 10, 12; White Ex. H–O, Q, R; Sim Ex. C, G, W–Z and the identified pages of Ex. P).

D. Material the Court Will Not Seal

1. Allegations, characterizations of conduct, and legal argument

A substantial portion of what PCNA seeks to seal consists of Pure Lithium's allegations that PCNA exceeded the scope of the parties' agreements, PCNA's responses to those allegations, and the parties' legal arguments, including the passages summarizing the alleged wrongdoing, the descriptions of what the contracts are said to permit and prohibit, the statement of the conduct sought to be enjoined, and the table of contents. That a party may find such material damaging or embarrassing is not an overriding interest. (*McNair, supra*, at p. 36.) Sealing the parties' contentions would also prevent the Court from issuing an intelligible public ruling, and the Court declines to grant sealing of such contentions. The same conclusion applies to the corresponding passages of PCNA's own opposition brief. Accordingly, the motions to seal are DENIED as to allegations, characterizations of conduct, and legal arguments.

2. The parties' agreements

PCNA seeks to seal the Mutual Non-Disclosure Agreement and Material Transfer Agreement and the passages describing their terms; Pure Lithium's March 9, 2026 motion seeks to seal the same agreements as exhibits to the complaint. Neither showing satisfies rule 2.550(d). These are form commercial instruments. Neither party identifies a provision whose disclosure would prejudice it, as distinct from the fact that the agreements contain a confidentiality clause — which does not itself justify sealing. (*Universal City Studios, supra*, at pp. 1283–1284; rule 8.46(d)(1).) The provisions at the center of this dispute have been quoted at length in the parties' filings and are necessarily the subject of the Court's rulings. PCNA fairly observes that Pure Lithium moved in March to seal these same agreements and now argues they must be public; the Court resolves the inconsistency against sealing as to both parties.

Motion 2 is DENIED to that extent and GRANTED as to technical material within Part I.C.

3. Pre-litigation correspondence between counsel

Correspondence between counsel concerning the subject matter of this dispute is not technical material, and no particularized prejudice from its disclosure has been shown. The motions are DENIED as to such material, subject to redaction of any embedded technical detail falling within Part I.C. Pure Lithium's opposition to Motion 5 also lists two exhibits that PCNA does not move to seal; absent a motion those will be transferred to the public file under rule 2.551(b)(3)(B). Counsel should confirm this at the hearing.

4. Generic descriptions of technique and industry practice

Both parties seek to seal expert testimony describing, in general terms, what certain established analytical techniques are, what they can reveal, and what is customary in the battery industry. Pure Lithium makes this objection to portions of PCNA's expert declaration; it applies equally to portions of Pure Lithium's own. Descriptions of analytical techniques and industry custom that do not disclose a party's own protocols, parameters, or results are not the confidential information of either party. The motions are DENIED as to such material.

E. Material Requiring Supplemental Briefing

Of the material PCNA seeks to seal, there is a narrower category that the Court would seal if it were appropriately identified and isolated, including: passages disclosing the specific sequence in which it elected to conduct particular analyses, the parameters used, the specific results obtained, its internal assessments of those results, and the identities of the particular third-party laboratories it retained. PCNA's supporting declaration supplies at least some evidentiary basis that this information is maintained in confidence and would be useful to competitors. The Court is prepared to make the appropriate rule 2.550(d) findings for material in this category.

Nevertheless, the obstacle at this stage is that PCNA has not separated this material from the far larger volume addressed in Part I.D. Its two motions identify several hundred line ranges across ten documents, supported by declarations describing the material in broad categorical terms. Rule 2.550(e)(1) requires the Court to state facts, and a categorical declaration spanning that many disparate and inclusive line ranges does not permit it. The Court cannot review the materials, and perform and address this separation, on the present submissions. The parties should also address, in the submission ordered below, the extent to which material in this category has already entered the public record through their own filings, as material already in the public domain cannot be sealed.

F. Conclusion

1. Motions 4 and 5 are DENIED as to Part I.D, and otherwise DENIED WITHOUT PREJUDICE as to Part I.E.
2. On or before **August 27, 2026**, the parties shall file a joint submission consisting of (a) a single set of proposed redactions for each affected document applying Parts I.C through I.E; (b) a chart identifying for each redaction the document, line range, category asserted, asserting party, and whether the other party agrees; and (c) for each disputed redaction, a declaration on personal knowledge stating the specific harm

expected from disclosure of that particular material. Argument by category will not suffice for disputed items.

3. All conditionally lodged material shall remain conditionally under seal pending ruling on the joint submission. The clerk shall not transfer any such material to the public file until further order.
4. A further submission of comparable breadth will result in denial and transfer to the public file. The parties should confine their disputes to material they are prepared to defend individually.

II. PCNA's Ex Parte Application

PCNA seeks the following: (1) leave to file a sur-reply, lodged with its application; (2) an order striking two reply declarations and one argument raised in the reply; and (3) alternatively leave to file a supplemental sur-reply with a supplemental expert declaration. Pure Lithium opposes in all respects.

A. Leave to File the Sur-Reply — GRANTED

New evidence is ordinarily not permitted with reply papers; where permitted, the opposing party should be given an opportunity to respond. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538 (*Jay*); *Hernandez v. First Student, Inc.* (2019) 37 Cal.App.5th 270, 277.) Pure Lithium's reply relies on twenty-one documents from a production PCNA made on July 28, 2026, most of them in Japanese and accompanied by certified translations dated August 4, 2026. PCNA has not addressed those documents, and the material bears on issues central to the motion.

Pure Lithium's waiver argument (that PCNA could have addressed the documents in its July 30 opposition) is not persuasive. PCNA produced them on July 28 and its opposition was due two days later, and it could not have reasonably known which documents Pure Lithium would select or what arguments it would build on them. The authorities cited concern a party's failure to raise an available point in its own brief; they do not require a party to preemptively

rebut arguments not yet made. Accordingly, leave to file the lodged sur-reply is GRANTED, and the sur-reply is deemed filed.

The Court does not resolve the parties' dispute over the timing of PCNA's July 28, 2026 production and makes no finding of misconduct by either party. Disputes concerning the timing and completeness of the parties' productions remain available to be raised by noticed motion, subject to the informal discovery conference requirements.

B. Motion to Strike — DENIED

The argument PCNA seeks to strike is not new. Pure Lithium advanced the substance of it in its opening brief in three separate passages, including in its discussion of the return obligation. The reply refines the argument in one respect, but that is development of a theory presented in the opening papers rather than a new one, and PCNA may address the refinement in its supplemental sur-reply.

The reply declarations are likewise not stricken. A reply declaration is properly considered where it responds to matters raised in the opposition; the concern identified in *Jay* is with reply evidence that addresses substantive issues in the first instance rather than filling gaps created by the opposition. (*Jay, supra*, at p. 1538.) Striking reply declarations that respond to the opposition may constitute an abuse of discretion. (*RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co., Inc.* (2020) 56 Cal.App.5th 413, 431.) Pure Lithium has submitted a paragraph-by-paragraph table comparing each substantive paragraph of the two reply declarations to the portion of PCNA's expert declaration to which it responds. The Court finds Pure Lithium's table to be substantially accurate. Both declarations respond in the main to opinions first offered in opposition, and the fact that one declarant had not submitted an earlier declaration does not make his response improper. Two paragraphs of the expert reply declaration present a closer question, PCNA fairly observing that they add specificity to Pure Lithium's showing on interim harm. Where reply evidence is at the margin, the remedy contemplated by *Jay* is to permit a response rather than to exclude, and the Court takes that course.

C. Supplemental Sur-Reply — GRANTED

PCNA may file a supplemental sur-reply not exceeding ten pages, together with a supplemental declaration of its expert, limited to responding to the two reply declarations. It shall not revisit matters addressed in the opposition or in the sur-reply. Pure Lithium may file a response not exceeding five pages, with no new evidence except in direct rebuttal to the supplemental expert declaration. No further expert declarations will be considered.

III. Motion for Preliminary Injunction — CONTINUED

The motion is continued. The Court is unwilling at this time to decide a contested application for injunctive relief on a record to which one party has not had sufficient opportunity to respond, and striking the reply material would deprive the Court of evidence both parties regard as relevant. The Court acknowledges Pure Lithium's position that the matter is urgent; that concern is addressed by the interim measures described in Part IV, which the Court raises for that reason. The continuance will be brief, as PCNA has already prepared its principal sur-reply.

IV. Interim Measures

A continuance should not prejudice Pure Lithium. PCNA has represented in correspondence and by declaration that neither it nor Panasonic Energy Co., Ltd. is using the information derived from its testing, that it does not want that information, and that it offered to destroy it. PCNA has not consented to an interim order, and the Court will hear argument before entering one. Subject to that argument, the Court is inclined to order, pending the continued hearing and until further order of the Court:

1. That PCNA, and its officers, directors, employees, agents and attorneys, and those in active concert or participation with them who receive actual notice, be restrained from using, disclosing or transmitting, for any research, development, engineering, design, manufacturing, commercial, competitive, benchmarking or business purpose, any information, data, images, measurements or analyses originating in or derived from (a) X-ray computed tomography, focused ion beam, scanning electron microscopy or energy-dispersive X-ray spectroscopy analysis of Pure Lithium's

battery cell prototypes, including any cryogenic variant; (b) the disassembly, sectioning or chemical analysis of any such prototype or portion; or (c) any testing or analysis of any such prototype or portion performed by any third party. The restraint would not extend to cycle testing or information derived from it; to use reasonably necessary for this litigation, subject to the protective order; or to information lawfully in the public domain other than through any act of PCNA, including information disclosed in Pure Lithium's published patents and patent applications.

2. That PCNA not destroy, delete, discard, overwrite, alter or dispose of any such information, any associated metadata, or the physical remnants of any Pure Lithium battery cell prototype or portion of a prototype in its possession, custody or control, notwithstanding any document retention, data purge or hazardous waste disposal practice that would otherwise apply.
3. That PCNA, within five court days, give written notice to each third party to which it transferred any Pure Lithium battery cell prototype or portion thereof, or which performed any testing or analysis of any such prototype or portion at PCNA's request, directing each to preserve and not destroy or alter any information derived from that testing or analysis and to perform no further testing or analysis; and that PCNA provide a copy of the order to Panasonic Energy Co., Ltd. Nothing in such an order would constitute a determination that any non-party is subject to the jurisdiction of this Court or is bound by the order, except to the extent it acts in active concert or participation with PCNA with actual notice of the order. PCNA shall file and serve a declaration confirming compliance with this paragraph, which may identify the recipients by reference to material lodged conditionally under seal.
4. That Pure Lithium file an undertaking under Code of Civil Procedure section 529 in an amount to be set at the hearing, the Court's preliminary view being that a nominal amount is appropriate for a restraint of this limited and prohibitory character, without prejudice to the amount required in connection with any preliminary injunction.

Any such order would preserve the status quo only and would reflect no finding on likelihood of success, breach, irreparable harm, or the admissibility or weight of any evidence. The Court would accept a stipulation on these or comparable terms in lieu of a contested order.

V. Schedule

The Court proposes the following and will set final dates at the hearing. Counsel should be prepared to state their availability; the Court notes that Pure Lithium's counsel has stated that she is unavailable on the August 19 date PCNA proposed.

Event	Proposed date
Sur-reply deemed filed; interim order entered; undertaking filed	Within 5 court days of the hearing
PCNA supplemental sur-reply (10 pp.) and supplemental expert declaration	August 20, 2026
Pure Lithium response (5 pp.)	August 27, 2026
Joint submission on sealing redactions (Part I.F)	August 27, 2026
Continued hearing on the preliminary injunction	Week of September 2, 2026, or the next available date on which counsel are available

VI. Reserved Matters

The Court defers ruling on the following: the merits of the preliminary injunction, including likelihood of success, interim harm, the balance of equities, the scope of any injunction and the amount of any undertaking; Pure Lithium's written evidentiary objections filed August 6, 2026, as to which PCNA may file its own objections with its supplemental sur-reply; PCNA's alternative request that the Court direct a meet and confer regarding disposition of the materials at issue; whether any injunction may reach Panasonic Energy Co., Ltd.; and all disputes concerning the timing, scope and completeness of the parties' document productions.

Calendar Line 8

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Case No.:

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Calendar Line 9

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Case No.:

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Calendar Line 10

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Case No.:

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Calendar Line 11

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Calendar Line 12

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